

SENATE RESOLUTION No. 5

DIGEST OF INTRODUCED RESOLUTION

A SENATE RESOLUTION urging Congress to propose an amendment to the Constitution of the United States to establish that campaign and election spending may be regulated.

Holdman

January 22, 2026, read first time and referred to Committee on Elections.



SENATE RESOLUTION 5

MR. PRESIDENT:

I offer the following resolution and move its adoption:

1 A SENATE RESOLUTION urging Congress to propose an
2 amendment to the Constitution of the United States to establish
3 that campaign and election spending may be regulated.

4 *Whereas, The people of Indiana have a compelling*
5 *sovereign interest in fostering robust political debate and self-*
6 *government, protecting the free speech interests of all*
7 *individuals, securing the liberty and political equality of our*
8 *citizens, guarding against corruption, and advancing*
9 *federalism and the interests of the several states;*

10 *Whereas, The Constitution of the State of Indiana*
11 *recognizes that government should be founded on the authority*
12 *of the people and that "the people have, at all times, an*
13 *indefeasible right to alter and reform their government";*

14 *Whereas, States may determine that reasonable regulation*
15 *of how money is used to influence the outcomes of elections*
16 *would secure the interests of citizens and protect the integrity*
17 *of elections;*

18 *Whereas, Over the past five decades, the United States*
19 *Supreme Court has come to equate unlimited election spending*



1 with "free speech", which has drowned out the free speech
2 interests of constituents, narrowed debate, weakened federalism
3 and self-governance in the States, and has increased the risk of
4 corruption; and

5 Whereas, The Framers of the United States Constitution
6 wisely granted the States the power to amend the Constitution
7 when necessary to make it, and our Union, ever more perfect
8 and to protect and preserve self-government and liberty:
9 Therefore,

10 Be it resolved by the Senate of the
11 General Assembly of the State of Indiana:

12 SECTION 1. That the Indiana Senate urges the United
13 States Congress to propose and send to the States for
14 ratification a Constitutional amendment to clarify that the States
15 and Congress, within their respective jurisdictions, may
16 reasonably regulate and limit the spending of money to
17 influence campaigns, elections, or ballot measures.

18 SECTION 2. The Secretary of the Senate is directed to
19 transmit copies of this Resolution to the Speaker of the United
20 States House of Representatives, the Minority Leader of the
21 United States House of Representatives, the Majority Leader of
22 the United States Senate, the Minority Leader of the United
23 States Senate, and to each member of the Indiana Congressional
24 delegation.

